

As to number of hours, the Court finds several billings excessive and makes the following monetary deductions.

\$250.00 (prepare client agreement)

\$191.25 (protective order)

\$1,445.00 (initial disclosure reviews)

\$2,537.50 (motion)

\$4,423.75 total deductions

Further, the Court reduces Plaintiff's requested amount of \$3,312.50 for reply related work to \$1,700.00. As a result, Plaintiff is awarded \$21,920.85 in attorney fees. (\$24,644.60 - \$4,423.75 + \$1,700) Additionally, Plaintiff is awarded \$790.97 in costs and expenses.

The Court will sign the proposed order.

13. 25CV04947 Roberts, Christopher Neil v. Davis, Nathan Charles et al

EVENT: Motion to be Relieved as Counsel (Plaintiff's Counsel)

Motion to be Relieved as Counsel is GRANTED. The Court will sign the proposed order. The order will become effective upon the filing of a proof of service demonstrating the order was served on Plaintiff.

14. 26CV00710 Morris, Dawn v. AOCL LLC et al

EVENT: Defendant AOCL, LLC's Petition to Enforce Class Action Waiver and Compel Arbitration and Dismissal

Defendant AOCL, LLC's Petition to Enforce Class Action Waiver and Compel Arbitration is GRANTED. The request for dismissal is DENIED. The case is stayed pending arbitration.

The Court rules on evidentiary objections as follows. Plaintiff's evidentiary objections: paragraph 3 of the declaration of Ms. Santos: sustained to the extent the declaration attempts to suggest that Plaintiff had sufficient time to review the documents. There is no indication declarant was personally present when Plaintiff reviewed the documents.

An Arbitration Agreement Exists

The Court has reviewed the evidence concerning Plaintiff's execution of the arbitration agreements via electronic signature and finds Defendant has met its burden of authenticating the signature pursuant to *Garcia v. Stoneledge Furniture LLC* 102 Cal.App.5th 41, 53 and related authority. The Court finds an arbitration agreement exists, thus the question is whether the agreement is enforceable.

Any Potential for Conflicting Rulings is De Minimis

Plaintiff argues there is a potential for conflicting rulings pursuant to CCP 1281.2(c) because the case also involves Defendant Country Crest LLC. AOCL took over the facility in February 2022. (The precise date is unclear) The relevant time period is 4 years before the filing of the complaint. The complaint was filed on 2/10/26, which means the complaint goes back to February 10, 2022.

It is unclear what the precise time period was before AOCL took over, but it appears to be only a matter of days. Any potential risk of inconsistent rulings would be de minimis considering Country Crest, LLC's involvement during the relevant time period is extremely limited.

Procedural Unconscionability

Haydon v. Elegance at Dublin (2023) 97 Cal.App.5th 1280, 1287

In assessing procedural unconscionability, courts ask "whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required." (*OTO, supra*, 8 Cal.5th at p. 126.) Oppression occurs 'where a contract involves lack of negotiation and meaningful choice' and surprise involves the extent to which 'the allegedly unconscionable provision is hidden within a prolix printed form.' (*Ibid.*)

There is no serious dispute that this is an adhesion contract as most employment contracts are. The arbitration agreement explicitly states that the agreement is a condition of employment.

Plaintiff argues an additional degree of procedural unconscionability exists, ostensibly based on surprise, because she only reviewed the document for 14 seconds. The Court is not persuaded. The fact that she only reviewed the document for 14 seconds was her choice. She received the documents along with the other on-boarding documents 4 days before her first day of employment. That is more than ample time for review.

In sum, the Court finds a low degree of procedural unconscionability exists due to the adhesive nature of the contract.

Substantive Unconscionability

PAGA Waiver

The agreement provides “ ... Company and Employee agree that they have waived ... any of their rights to bring ... to bring, participate in, initiate, join, or in any way become a party to any class action, collective action, consolidated action, representative action, Private Attorneys General Act (“PAGA) action or joint action ...”

A ban on PAGA actions is a substantively unconscionable term, *see Hasty v. American Automobile Assn. etc.* (2023) 98 Cal.App.5th 1041, 1062-1063. However, paragraph 5 of the agreement contains language mitigating any unconscionability:

To the extent applicable or state law or state court decision precludes Employee and/or Company from arbitrating PAGA claims ... then the Parties agree that PAGA claims shall be heard by a court of competent jurisdiction.

This language mitigates an PAGA waiver as it essentially provides that if a PAGA waiver is illegal, the PAGA claims are heard in court, except that the individual PAGA claim will go to arbitration, which is consistent with current law.

Class Action Waiver

Plaintiff argues that because the Federal Arbitration Act does not apply, and because the California Arbitration Act does apply, the class action waiver is unenforceable. Case law is clear that if the FAA applies, class action waivers are enforceable, *see Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 359-360, 364.

Per *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122, if the contract provides that the FAA governs, it is simply a matter of contract enforcement. Because the agreement provides the FAA applies, the waiver is not unconscionable.

Scope of Employment

Plaintiff argues the agreement includes claims “with no tether to employment” in paragraph 3 of the agreement, seemingly relying on the “other Matters” language. The Court does not interpret that language as including matters not tethered to employment. The preceding clause limits the matters to “arising out of Employee’s employment, including ... claims and other matters ...” Interpreting the language as a whole and in context, “matters” is limited to subjects arising out of employment. The Court finds this language is not unconscionable.

Employee Bound Against Non-Signatory Third Parties

Plaintiff suggests there is a lack of mutuality because claims she has against individual directors, managers, employees, etc. are subject to arbitration but none of those individuals

are signatories resulting in a lack of mutuality. Plaintiff cites *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312.

However, *Cook* simply took issue with the fact that USC's "related entities" were not required to arbitrate their claims. *Cook* does not stand for the proposition that subjecting claims to arbitration against individuals in their capacity as employees, directors etc., is one sided. Nor is the Court aware of any authority.

The Court finds no mutuality issue.

Indefinite Duration

Paragraph 11 of the agreement provides the "Agreement to arbitrate shall survive the termination of employee's employment. It can only be revoked or modified in writing signed by both Parties that specifically states an intent to revoke or modify this agreement."

Cook, supra, involved similar language and the Court found the language substantively unconscionable. Accordingly, the Court finds infinite duration language contained in paragraph 11 substantively unconscionable.

Severability

In sum there is one substantively unconscionable term, the indefinite duration language.

Severance may be properly denied when the agreement contains more than one unconscionable provision, and there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement. (*Cook, supra* at p. 329) [Internal citations omitted]

Because there is only one unconscionable term, the Court finds the term severable. Even if the indefinite duration language was not severable, the motion would nevertheless be granted based on the sliding scale approach.

Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.App.4th 83, 114:

The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Stirlen v. Supercuts, Inc., supra*, 51 Cal. App. 4th at p. 1533 (*Stirlen*).) But they need not be present in the same degree. "Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves." (15 Williston on Contracts (3d ed. 1972) 1763A, pp. 226-227; see also *A & M Produce Co., supra*, 135 Cal. App. 3d at p. 487.) In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.

The Court has found a low degree of procedural unconscionability exists. As to substantive unconscionability, the indefinite duration term in isolation represents a low degree of substantive unconscionability. The likelihood that the parties will have a subsequent employment related dispute years in the future is seemingly remote.

Defendant shall prepare the form of order within 2 weeks.

15. 26CV01777 In re: Hawthorne, Jamie

EVENT: Change of name (minor)

The Court will hear from Petitioner. There is no proof of publication on file. Also, there is no proof of service demonstrating the non-consenting parent was served with the Petition as required by CCP 1277.

16. 26CV01932 In re: Vilensky, Elazar

EVENT: Change of name (adult) (continued from 8/19/26)

The Court is in receipt of the proof of publication and will sign the decree provided.

17. 26CV01963 In re: Meyer, Danielle Krista

EVENT: Change of name (adult) (Continued from 7/29/26)

The Court will hear from Petitioner regarding the status of the proof of publication.